

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTION 13.20.050, GENERAL PROHIBITIONS, AND SECTION 13.20.070, LOCAL LIMITS, OF CHAPTER 13.20, WASTEWATER TREATMENT AND DISPOSAL, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, TO REVISE LOCAL DISCHARGE LIMITS AND RELATED PROVISIONS IN COMPLIANCE WITH NPDES AND WPDES PERMIT REQUIREMENTS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. The Governing Body of the City of Cheyenne finds and declares that:

A. State and federal wastewater discharge permitting regulations require that publicly owned treatment works (POTWs) provide a written technical evaluation of the need to revise local limits following the issuance or reissuance of a National Pollutant Discharge Elimination System (NPDES) permit;

B. On February 20, 2024, the State of Wyoming issued permits authorizing the discharge of treated wastewater from the Dry Creek Water Reclamation Facility and the Crow Creek Water Reclamation Facility to receiving waters identified as Crow Creek, South Platte River Basin, in accordance with the requirements of the Wyoming Pollution Discharge Elimination System (WPDES) Permits WY0022934 and WY0022381, respectively;

C. In compliance with the NPDES permitting requirements, the City of Cheyenne Board of Public Utilities (BOPU) submitted a proposed Sampling Plan for review by the Environmental Protection Agency (EPA) on January 22, 2025, and the EPA approved the Sampling Plan on June 2, 2025;

D. In compliance with the NPDES permitting requirements, BOPU submitted a proposed Pollutants of Concern (POCs) report for EPA review on May 29, 2025, providing information pertaining to the screening and evaluation of pollutants and the proposed final determination of POCs to be included in the Local Limits Evaluation, and the EPA agreed with the POCs Evaluation on June 2, 2025;

E. In compliance with the NPDES permitting requirements, BOPU submitted a proposed technically based Local Limits Evaluation for EPA review on August 6, 2025, and the EPA deemed the proposed local limitations approvable on January 28, 2026; and

F. To remain in compliance with the NPDES permitting requirements, to preserve the quality of Crow Creek, to maintain the plant at the highest performance levels, to protect the plant’s operating staff, and to protect the overall environment of the South Platte River Basin, the Governing Body determines that it is necessary and appropriate to amend certain wastewater treatment and disposal provisions of the Cheyenne Municipal Code as provided in this Ordinance.

Section 2. That Sections 13.20.050, General Prohibitions, 13.20.070, Local Limits; of Chapter 13.20, Wastewater Treatment and Disposal, of Title 13, Public Services, of the code of the City of Cheyenne, Wyoming, are amended to read:

13.20.050 - General prohibitions.

- A. No industrial user shall contribute or cause to be contributed, directly or indirectly, to the POTW any pollutant or wastewater which will pass through or cause interference with the operation or performance of the POTW. These general prohibitions and the specific prohibitions in subsection B of this section shall apply to all the industrial users of the POTW, whether or not they are subject to pretreatment standards or requirements.
- B. Specific Prohibitions. No industrial user shall contribute the following substances to the POTW:
 - 1. Any substances which by reason of their nature or quantity will create a fire or explosion hazard or be injurious to the POTW or to the operation of the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Celsius using the test methods in 40 CFR Section 261.21;
 - 2. Any solid or viscous substances which will cause obstruction to sewer flow or other interference with the operation of the POTW such as, but not limited to, fats, oils and grease, garbage with particles greater than one-half inch in any dimension, or any material which can be disposed of as trash;
 - 3. Any biological, chemical, or enzyme product, used on its own or in conjunction with other substances, that causes the liquefaction or emulsification or the act of liquifying or emulsifying fats, oil or grease;
 - 4. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause pass through or interference;
 - 5. Any wastewater having a pH less than five or having any other corrosive property capable of causing damage or hazard to structures, equipment or personnel of the POTW;
 - 6. Any substance which may cause a public nuisance, cause hazard to life or prevent entry into the sewers for maintenance and repair;
 - 7. Heated substances in amounts which will prevent entry into the sewer system of authorized personnel or will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the POTW treatment plant exceeds one hundred four (104) degrees Fahrenheit or forty (40) degrees Celsius. A limit may be required in particular situations where the temperature has caused or has potential to cause pass through of an interceptor, pass through or interference in the POTW;

8. Any pollutant which results in the presence of toxic gases, vapors or fumes within the POTW in a quantity that may cause acute worker health and safety problems;
 9. Any trucked or hauled pollutants, except at discharge points designated by the BOPU;
 10. Any pollutant, including oxygen demanding pollutants, released in a discharge at a flow rate and/or concentration (including any slug load) which will cause interference to the POTW;
 11. Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating the BOPU's WYPDES permit;
 12. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;
 13. Stormwater, surface water, ground water, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by the BOPU;
 14. Sludges, screenings, or other residues from the pretreatment of industrial wastes;
 15. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail toxicity test;
 16. Detergents, surface-active agents, or other substances that might cause excessive foaming in the POTW;
 17. Bulk, expired, outdated, or concentrated prescription and non-prescription drugs, that may cause or contribute to pass through or interference.
- C. No chemicals, or substances, including, but not limited to, paints, solvents, boiler or water treatment chemicals, sludges or wastes shall be stored in proximity to a floor drain or other sewer openings unless secondary containment is provided or there are physical barriers to entry to the wastewater collection system. The storage of any chemicals, materials, substances, or wastes that leak or have potential to leak or discharge into the POTW which may create an explosion hazard or in any way have a deleterious effect to the POTW or constitute a nuisance or a hazard to POTW personnel, the general public, the environment, or the receiving stream shall be prohibited.

13.20.070 - Local limits.

- A. The BOPU is authorized to establish local limits pursuant to 40 CFR Section 403.5(c).
- B. It shall be unlawful for any significant industrial user or other designated and permitted industrial user to discharge or cause to be discharged any waste or wastewater to the Crow Creek Water Reclamation Facility or the Dry Creek Water Reclamation Facility that

exceeds the following daily maximum limit or pollutant allocations as specified in the individual wastewater discharge permit established in Section 13.20.210 of this chapter and issued by the BOPU.

Dry Creek Water Reclamation Facility		
Pollutant	Daily Discharge mg/L	Maximum Limits Total Allowable Load (MAIL) (*) lbs/day
Arsenic	0.106	0.4250
Cadmium	0.009	0.0376
Chromium	3.653	14.5843
Copper	1.773	7.0791
Lead	0.490	1.9565
Mercury	0.001	0.0040
Molybdenum	0.186	0.7417
Nickel	0.887	3.5409
Selenium	0.179	0.7137
Silver	0.285	1.1391
Zinc	4.933	19.6951
Biochemical Oxygen Demand (BOD ₅)	579	2313
Total Suspended Solid (TSS)	448	1787

Crow Creek Water Reclamation Facility		
Pollutant	Daily Discharge mg/L	Maximum Limits Total Allowable Load (MAIL) (*) lbs/day
Arsenic	0.102	0.4737
Cadmium	0.007	0.0321
Chromium	2.437	11.2876
Copper	0.108	0.4996
Lead	1.476	6.8349
Mercury	0.0041	0.0192

Nickel	1.219	5.6478
Selenium	0.120	0.5560
Silver	0.193	0.8936
Zinc	3.964	18.3618
Biochemical Oxygen Demand (BOD ₅)	745	3449
Total Suspended Solid (TSS)	365	1690

(*) The BOPU may allocate the MAIL for a pollutant on a case-by-case basis for the Crow Creek and Dry Creek facilities to significant industrial users or other permitted industrial user discharges. The total allocations included in individual wastewater discharge permits shall not exceed the lbs/day values listed. The BOPU will base its allocation decisions upon available loading and industrial user needs. Allocations are at the sole discretion of the BOPU.

C. Benzene and BTEX. The following limits shall apply to wastewaters that are discharged from:

1. Groundwater cleanup of petroleum or gasoline underground storage tanks or other remediation wastewaters containing these pollutants;
2. Discharges where one or more of these pollutants are present; or
3. Where these pollutants are appropriate surrogates.

It shall be unlawful for any industrial user to discharge or cause to be discharged any waste or wastewater to the POTW that exceeds the following limits:

Pollutant ⁽¹⁾⁽³⁾	Daily Maximum Limit (mg/L)
Benzene	0.050
BTEX ⁽²⁾	0.750

⁽¹⁾ All pollutants shown in the table are total.

⁽²⁾ BTEX shall be measured as the sum of Benzene, Ethylbenzene, Toluene and Xylenes.

⁽³⁾ These limits are based upon installation of air stripping technology as described in the EPA document: "Model NPDES Permit for Discharges Resulting from the Cleanup of Gasoline Released from Underground Storage Tanks. June 1989."

D. It shall be unlawful for any industrial user to discharge or cause to be discharged any waste or wastewater to the Crow Creek Water Reclamation Facility or the Dry Creek Water Reclamation Facility that exceeds the following limits.

Pollutant	Daily Maximum Limit (mg/L)
Total Petroleum Hydrocarbons	50
Total Fats, Oils and Grease	100

E. The BOPU may establish more stringent pollutant limits, additional site-specific pollutant limits, BMPs, or additional pretreatment requirements, by ordinance or in individual wastewater discharge permits when, in the judgment of the BOPU, such limitations are necessary to implement the provisions of this chapter.

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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